

THE CORPORATION OF THE MUNICIPALITY OF NORTH GRENVILLE

BY-LAW NO. 104-16

A By-Law to Regulate the Operation of All-Terrain Vehicles on Municipal Roads

WHEREAS the Council of the Corporation of the Municipality of North Grenville deems it appropriate to pass a by-law to regulate, govern and limit the operation of All-Terrain Vehicles (ATVs) on Municipal Roads within the Municipality of North Grenville;

AND WHEREAS the *Highway Traffic Act*, 1990, as amended, and Ontario Regulation 316/03 authorizes municipalities to pass by-laws permitting ATVs to be operated on highways or part of highways within the municipality and during specific months and hours as set out;

NOW THEREFORE the Council of the Corporation of the Municipality of North Grenville enacts as follows:

SECTION 1: DEFINITIONS

In this By-Law:

- 1.1 For the purposes of this by-law, whenever the term “All-terrain vehicle” or (ATV) is stipulated, it shall include any of the following:

“All-terrain vehicle” means an off-road vehicle that,

- (a) has four wheels, the tires of which are all in contact with the ground,
- (b) has steering handlebars,
- (c) has a seat that is designed to be straddled by the driver, and
- (d) is designed to carry,
 - (i) a driver only and no passengers, or
 - (ii) a driver and only one passenger, if the vehicle,
 - (A) has one passenger seat that is designed to be straddled by the passenger while sitting facing forward behind the driver, and
 - (B) is equipped with foot rests for the passenger that are separate from the foot rests for the driver;

“Multi-purpose off-highway utility vehicle” which means an off-road vehicle that,

- (a) has four or more wheels, the tires of which are all in contact with the ground;
- (b) has a steering wheel for steering control;
- (c) has seats that are not designed to be straddled; and
- (d) has a minimum cargo capacity of 159 kilograms.

“off-road vehicle” which has the same meaning as in the *Off-Road Vehicles Act*;

“recreational off-highway vehicle” which means an off-road vehicle that,

- (a) has four or more wheels, the tires of which are all in contact with the ground,
- (b) has a steering wheel for steering control,
- (c) has seats that are not designed to be straddled, and
- (d) has an engine displacement equal to or less than 1,000 cubic centimetres;

- 1.2 “Highway” includes a common and open public highway, street, avenue, parkway, driveway, square, place, bridge, viaduct, or trestle, any part of which is intended for or used by the general public for the passage of vehicles and includes the area between the lateral property lines thereof.

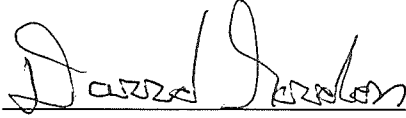
- 1.3 “Roadway” means the part of the highway that is improved, designed, or ordinarily used for vehicle traffic, but does not include the shoulder, and where a highway includes two or more separate roadways, the term “roadway” refers to any one roadway separately and not all of the roadways collectively.

SECTION 2: REGULATIONS

- 2.1 The operation of ATVs shall be permitted upon the highways under the jurisdiction of the Corporation of the Municipality of North Grenville as listed in Schedule “A” in accordance with the provisions of this by-law and in accordance with Ontario Regulation 316/03 of the *Highway Traffic Act*, the *Off Roads Vehicles Act*, including, but not limited to the following:
- a) All tires on the ATV are low pressure bearing tires;
 - b) The ATV must meet the Motor Vehicle Safety Standards prescribed for restricted-use motorcycles in the Motor Vehicle Safety Regulations made under the *Vehicle Safety Act*;
 - c) The ATV must be equipped with a service brake, parking brake and parking mechanism;
 - d) The ATV must be equipped with one or two lamps that emit a white light on the front of the vehicle and one or two lamps that emit a red light at the rear of the vehicle and must be lit at all time when operating on the highway;
 - e) The ATV must be operated under the authority of a permit issued under Section 5 of the *Off-Road Vehicles Act* and a number plate showing the number of the permit clearly displayed;
 - f) The ATV shall be insured in accordance with Section 2 of the *Compulsory Automobile Insurance Act* and Section 15 of the *Off-Road Vehicles Act*;
 - g) The driver of the ATV shall hold a valid Class A, B, C, D, E, F, G, G2, M or M2 driver’s licence, unless exempt under the *Act*;
 - h) All riders -- including drivers and passengers of all ages -- must wear a helmet and use a seatbelt or foot rests, where applicable. Helmets must comply with Section 19 of the *Off-Road Vehicles Act*;
 - i) The ATV shall not be driven at a rate of speed greater than 20 kilometres per hour, if the speed limited established under the *Highway Traffic Act* for that part of the highway is not greater than 50 kilometres per hour, or 50 kilometres per hour, if the speed limit established under the *Highway Traffic Act* for that part of the highway is greater than 50 kilometres per hour; and,
 - j) The ATV shall be driven on the shoulder of the highway in the same direction as the traffic using the same side of the highway, except where there is no shoulder or the shoulder is obstructed in which case the ATV may be driven on the roadway.
- 2.2 The operation of ATVs shall be permitted only during the hours specified in Schedule “B”.
- 2.3 Any person who contravenes any section of this by-law is guilty of an offence and upon conviction is liable to a fine as provided in the *Provincial Offences Act*.
- 2.4 By-Law 58-15 is hereby repealed.
- 2.5 The Clerk of the Municipality of North Grenville is hereby authorized to make any minor modifications or corrections of an administrative, numeric, grammatic, semantic or descriptive nature or kind to the by-law and schedule(s) as may be deemed necessary after the passage of this by-law, where such modifications or corrections do not alter the intent of the by-law.

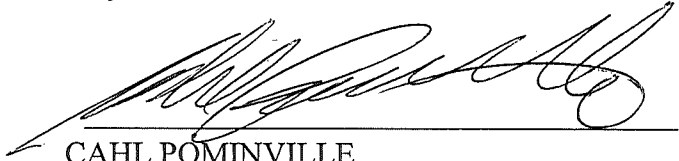
2.6 This by-law shall come into effect on the date of passing.

PASSED AND ENACTED
THIS 28TH DAY OF NOVEMBER, 2016.



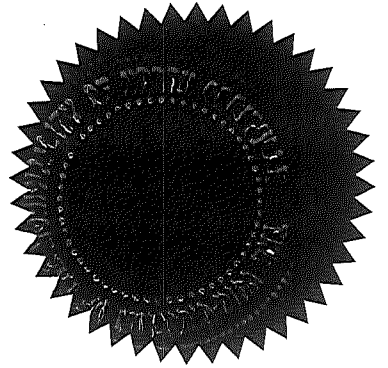
DAVID GORDON

Mayor



CAHL POMINVILLE

Clerk



THE CORPORATION OF THE MUNICIPALITY OF NORTH GRENVILLE

SCHEDULE “A” TO BY-LAW 104-16

All Terrain vehicles (ATVs) shall be permitted on all highways within the Municipality of North Grenville under the jurisdiction of the Municipality of North Grenville. This authority shall not extend to highways under the jurisdiction of the United Counties of Leeds and Grenville or the King’s Highway (i.e. #416)

Notwithstanding the above, ATVs shall generally not be permitted on local municipal roads within the urban boundaries of Kemptville (including Somerville Road), the built up areas of the Hamlets of Oxford Mills, Burritts Rapids, Bishops Mills, Oxford Station, Heckston and Peltons Corners, or within any Rural Residential subdivision. Signage shall be installed indicating the limit of the built up areas where ATV use shall be restricted. The only exception to this shall be the opportunity to travel into Hamlet areas to commercial establishments for fuel and food.

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SCHEDULE “B” TO BY-LAW 104-16

All Terrain vehicles (ATVs) shall be permitted on all roads within the Municipality of North Grenville under the jurisdiction of the Municipality of North Grenville during the following periods:

One half (½) hour before sunrise to one half (½) hour after sunset.